

25NNCV04139 25NNCV04139

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-08-07

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Case Number: 25NNCV04139 Hearing Date: August 7, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion for Leave to Intervene

Hearing Date: 8/7/26

CASE NO./NAME: 25NNCV04139/ April

Godales, et al. v. Roofing Touch, Inc.

Moving Party: Proposed Intervenor Ironshore
Specialty Insurance Co.

Responding Party: Unopposed

Notice: Sufficient

Ruling: GRANT

NOTICE

The

Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to argue as to this matter/motion. The tentative ruling will become the ruling of the court if no argument is received. Notice may be given either by email at

 or by telephone at (818) 260-8422.

Counsel

must appear on all other matters scheduled for this case.

BACKGROUND

This is a negligence action. In August of 2023, defendant roofing contractor Roofing Touch, Inc. (Defendant) was engaged to install a new roof at the Sutton Terrace South Condominiums located at 6225 Coldwater Canyon, North Hollywood (the Property). During the installation of the new roof, and while parts of the roof were exposed, Hurricane Hillary made landfall in Southern California. Efforts to tarp and cover the exposed areas were unsuccessful and several units within the Property sustained water damage. Plaintiffs April Godales, Emmy Perez, Mariam Sidhom, Beatrice Corgnati, Jack Sauage, Drew Thorton, Shelli Aaronson, Nikka Riabov, Elina Shamorsky, Leopoldo Munoz, Sutton Terrace South Owner's Association, Inc. (collectively Plaintiffs) owned units that sustained damage. On June 16, 2025, Plaintiffs filed the instant action against Defendant for negligence, trespass, private nuisance, and negligent hiring, supervision, and retention.

Ironshore Specialty Insurance Co. (Ironshore) was the commercial general liability insurance policy provider for Defendant at the time of the incident. On June 3, 2026, Ironshore filed the instant motion for leave to intervene in the action. No opposition has been filed as of August 3, 2026.

On July 31, 2026, Ironshore filed a Reply notifying the Court of Plaintiffs' non-opposition and requesting the hearing for the instant motion be advanced to August 4, 2026, the same date as the upcoming Case Management Conference.

LEGAL

STANDARD

An intervention takes place when a nonparty, an intervenor, seeks to become a party to an action or proceeding between other persons by joining a plaintiff in claiming what is sought by the complaint, joining a defendant in resisting the plaintiff's claims, or demanding anything adverse to both a plaintiff and a defendant. (Code Civ. Proc., § 387, subd. (b).)

“A nonparty shall petition the court for leave to intervene by noticed motion or ex parte application. The petition shall include a copy of the proposed complaint in intervention or answer in intervention and set forth the grounds upon which intervention rests.” (Code Civ. Proc., § 387(c).)

If the nonparty timely files its application, then the court shall permit the nonparty to intervene in the action as long as either of the following conditions is satisfied: (A) A provision of law confers an unconditional right to intervene; (B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties. (Code Civ. Proc., § 387, subd. (d)(1).)

Otherwise, the court may permit the nonparty to intervene in the action, as long as the motion is timely, if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both. (Code Civ. Proc., § 387(d)(2).) This section is construed liberally “in favor of intervention.” (Simpson Redwood Co. v. State of California (1987) 196 Cal.App.3d 1192, 1200.) “For permissive intervention three factors are paramount: the intervenor must have a direct interest in the lawsuit, the intervenor must not enlarge the issues raised by the original parties[,] and the intervenor must not tread on the rights of the original parties to conduct their own lawsuit.” (Kuperstein v. Superior Court (1988) 204 Cal.App.3d 598, 600.)

There is no statutory time limit for filing a motion to intervene. (Noya v. A.W. Coulter Trucking (2006) 143 Cal.App.4th 838, 842.) “[T]he timeliness of a motion to intervene under section 387 should be determined based on the date the proposed interveners knew or should have known their interests in the litigation were not being adequately represented.” (Ziani Homeowners Assn. v. Brookfield Ziani LLC (2015) 243 Cal.App.4th 274, 282.) Intervention is possible at any time, even after judgment, if otherwise appropriate. (Mallick v. Superior Court (1979) 89 Cal.App.3d 434, 437.)

If intervention is granted, the intervenor must (1) separately file (a) a complaint-in-intervention, (b) answer-in-intervention, or (c) both and (2) serve all parties. (Code Civ. Proc., § 387, subd. (e).)

DISCUSSION

The total damages claimed by the 30+ affected parties, including Plaintiffs, is nearly \$5.5 million dollars; however, Ironshore declares that Defendant's policy only holds \$1,000,000. (Mokri Decl., ¶ 6.) Ironshore intervenes in this action on the grounds that it has an interest in the matter in litigation, and in the outcome of the litigation. (Mot., p. 3.)

Procedural Requirements

The

Court notes that Ironshore has complied with the statutory requirements of the Code of Civil Procedure, section 387. Ironshore has petitioned the Court with a noticed motion including a copy of the proposed Complaint in Intervention setting forth the ground upon which intervention rests. (Mokri Decl., Exh. B.)

Right to Intervene

Ironshore

argues they have the right to intervene pursuant to Code of Civil Procedure section 387(d)(1)(A). Ironshore argues that their absolute right to intervene stems from Insurance Code section 11580 which states that a liability insurer agrees to pay any judgment obtained against its insured. (Mot., p. 4.) Ironshore argues that because they agreed to pay judgments, they have the right to intervene in an action to defend their interests. (Ibid.) Alternatively, Technology argues they have the permissive right to intervene pursuant to Code of Civil Procedure section 387(d)(1)(B). (Ibid.) Ironshore argues that because they will be required to pay for damages alleged by Plaintiff as Defendant's insurance provider, they have an interest in the matter in litigation and the outcome. (Mot., p. 3.) Moreover, Ironshore argues that Defendant is now a terminated corporation that will not defend their interests. (Ibid.)

Here, Ironshore claims an interest due to their status as Defendant's insurance provider, and they will ultimately be required to pay judgment entered for Plaintiffs. The disposition of the action may impair or impede Ironshore's ability to protect that interest since Defendant has not appeared and no one currently involved in the action is representing their

interests. Moreover, Ironshore declares that Plaintiffs have stipulated to allow Ironshore to intervene in the action. (Mokri Decl., ¶ 8, Exh. A.) Thus, Ironshore should be permitted to intervene pursuant to Code of Civil Procedure section 378(d)(1)(B).

CONCLUSION

AND ORDER

Ironshore Specialty Insurance Co.'s Motion
for Leave to Intervene is GRANTED.

MOVING PARTY is to give notice.